

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #11	CCRB Case #: 201409610	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 09/12/2014 6:30 PM	Location of Incident: 66th Street and 14th Avenue	18 Mo. SOL 3/12/2016	Precinct: 68
Date/Time CV Reported Fri, 09/12/2014 10:22 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/18/2014 2:23 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Angel Gomez	02927	922426	NARCBBS
2. POM James Obrien	13461	943624	NARCBBS
3. DT3 Victor Robalino	03105	937388	NARCBBS
4. An officer			NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Frank Avila	02962	918714	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Angel Gomez	Abuse: Sgt. Angel Gomez stopped § 87(2)(b)	A . Substantiated
B . DT3 Victor Robalino	Abuse: Det. Victor Robalino stopped § 87(2)(b)	B . Substantiated
C . DT3 Victor Robalino	Abuse: Det. Victor Robalino frisked § 87(2)(b)	C . Substantiated
D . DT3 Victor Robalino	Force: Det. Victor Robalino used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM James Obrien	Force: PO James Obrien used physical force against § 87(2)(b)	E . Unsubstantiated
F . SGT Angel Gomez	Force: Sgt. Angel Gomez used physical force against § 87(2)(b)	F . Exonerated
G . An officer	Force: An officer struck § 87(2)(b) with handcuffs.	G . Officer(s) Unidentified

Case Summary

On September 12, 2014, at approximately 6:30 p.m., Sgt. Angel Gomez and Det. Victor Robalino of Narcotics Borough Brooklyn South observed § 87(2)(b) in a series of interactions with various individuals that they believed to be hand-to-hand narcotics transactions. § 87(2)(b) and § 87(2)(b) entered § 87(2)(b)'s apartment building, located at § 87(2)(b). When § 87(2)(b) exited the building, Sgt. Gomez and Det. Robalino stopped him (**Allegations A and B**). The officers questioned § 87(2)(b) regarding § 87(2)(b) and the suspected drug transactions. § 87(2)(b) admitted that he had wanted to purchase heroin from § 87(2)(b) but § 87(2)(b)'s asking price was too high. Det. Robalino frisked § 87(2)(b) (**Allegation C**). § 87(2)(b) later exited the building and fled when Det. Robalino approached him. PO James O'Brien chased § 87(2)(b) who jumped over two fences into someone's enclosed backyard. PO O'Brien tackled § 87(2)(b). § 87(2)(b) alleged that PO O'Brien and Det. Robalino each punched him in the top of the head (**Allegations D and E**). While being walked with PO O'Brien, § 87(2)(b) continued to struggle, and Det. Robalino and Sgt. Gomez joined the struggle as well. Sgt. Gomez punched § 87(2)(b) once in the top of the head, causing him to fall to the ground (**Allegation F**). § 87(2)(b) alleged that when he was on the ground, an officer struck him in the head with a pair of handcuffs. (**Allegation G**). § 87(2)(b)'s fiancé, § 87(2)(b) arrived onto the scene at the end of the incident. § 87(2)(b) was charged with § 87(2)(b).

_____ (encl. 8A-C). He later received medical attention at § 87(2)(b) _____, § 87(2)(b) _____.

Mediation, Civil, and Criminal Histories

- This case was unsuitable for mediation.
- On June 28, 2015, an inquiry was sent to the NYC Comptroller's Office regarding whether § 87(2)(b) or § 87(2)(b) has filed a notice of claim regarding this incident. Results are pending and will be included in the case file upon their receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b)s and § 87(2)(b)s first with the CCRB (encl. 4D-E).
- Sgt. Gomez, Det. Robalino and PO O'Brien have been members of the NYPD for 16, ten and eight years, respectively. None of them has any substantiated CCRB allegations against them (encl. 4A-C).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) did not see which officer allegedly struck him with a pair of handcuffs. All of the officers interviewed denied doing so or seeing any other officer do so. § 87(2)(b)

Allegations not Pleaded

- **Force:** Although § 87(2)(b) said that she saw officers choke § 87(2)(b) and she heard him say he could not breathe, he never alleged that he was choked or that officers did anything near his neck, nor did he allege that his breathing was restricted at any point. § 87(2)(g)
- **Discourtesy:** § 87(2)(b) alleged in his phone statement that officers told § 87(2)(b) “Shut the fuck up before we take you, too, you stupid bitch! Get the fuck out of here!” In his verified interview, he stated that officers told her, “Shut the fuck up or you’re going to be arrested, too!” In § 87(2)(b)’s phone statement, she said that officers told her to, “Get the fuck out of here,” or she would be arrested. However, in her verified interview, she stated specifically that officers did not tell her to “shut the fuck up,” or call her “a bitch” and she did not recall any officer cursing at her. § 87(2)(g)
- § 87(2)(g)

Allegation A—Abuse of Authority: Sgt. Angel Gomez stopped § 87(2)(b)

Allegation B—Abuse of Authority: Det. Victor Robalino stopped § 87(2)(b)

Allegation C—Abuse of Authority: Det. Victor Robalino frisked § 87(2)(b)

§ 87(2)(b) was uncooperative with the investigation (encl. 14GGG). § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Gomez testified that when he and Det. Robalino were making observations of § 87(2)(b), he saw § 87(2)(b) hand something to an individual, who then walked away from him, who then made an exchange with a third individual. § 87(2)(b) then met up with § 87(2)(b) and they walked together into § 87(2)(b)’s apartment building. Det. Robalino testified that as § 87(2)(b) and § 87(2)(b) walked toward § 87(2)(b)’s building, they exchanged an object. Det. Robalino could not tell the nature of the object, or whether it was money or drugs. § 87(2)(g), § 87(2)(e), § 87(2)(f)

After a period of time lasting between five and 20 minutes, § 87(2)(b) exited the apartment building alone, at which point Sgt. Gomez and Det. Robalino approached him. Det. Robalino testified that he asked whether § 87(2)(b) lived in the neighborhood, and who § 87(2)(b) was. § 87(2)(b) who appeared nervous, told Det. Robalino that § 87(2)(b) was a friend. Det. Robalino observed that § 87(2)(b)’s pocket had a large bulge, which appeared similar in size and shape to a wallet. Det. Robalino asked § 87(2)(b) what was making the bulge, and § 87(2)(b) replied that it was his money. Although he was not asked to do so, § 87(2)(b)

removed the contents of the bulge, which was approximately \$1,000 in cash. Det. Robalino asked why he had so much money on him, § 87(2)(b) eventually admitted that he had wanted to purchase a sleeve of heroin from § 87(2)(b) but § 87(2)(b) was asking for too much money. Sgt. Gomez corroborated that § 87(2)(b) had told the officers as much, and Det. Robalino documented the statement in his memo book. The officers both testified that § 87(2)(b) informed them that he believed that § 87(2)(b) would come outside again shortly in order to sell heroin to someone else.

Det. Robalino stated that he frisked § 87(2)(b) which is documented in the Stop, Question, and Frisk report (encl. 8V-W). He testified that he conducted the frisk in the interest of preserving his own safety. He denied suspecting § 87(2)(b) of any other crime besides potentially buying drugs. When asked whether he suspected § 87(2)(b) of being in possession of any weapon, he replied, “Anything is possible, so for my own safety, I had to check.” He denied that § 87(2)(b) had any other bulges, aside from the one caused by the money.

An officer must have an objective credible reason to approach an individual and request information. He may ask accusatory questions of such person if founded suspicion of criminality exists. When an officer has reasonable suspicion that an individual has committed, is committing, or is about to commit a crime, he may stop that individual. An officer is authorized to frisk an individual only if the officer reasonably suspects that the individual threatens physical injury to the officer by virtue of being armed. *People v. Debour*, 40 N.Y.2d 210 (1976) (encl. 1A-K). *People v. Hollman*, 79 N.Y.2d 181 (1992) (encl. 1L-s). Observing brief contact between the hands of two individuals without witnessing any other indication of a drug transaction does not support a reasonable belief that an exchange took place, and therefore does not justify a stop. *People v. Tyler*, 30 Misc. 3d 1218A (Sup. Ct. New York City, 2011) (encl. 2A-D). If an officer observes a transaction, but not the transfer of currency or an object readily identifiable via some trademark of an illegal substance, such an observation does not constitute reasonable suspicion to stop the participants, even if the officer is trained in narcotics investigation and the location is classified as drug prone. *People v. Thompson*, 4 Misc. 3d 126A (2004) (encl. 2E-F). Encounters arising from inadequate suspicion are prone to a lack of constructive restraint. Such restraint precludes police officers for probing for weapons without describable conduct or the demonstrable presence of a describable object. *People v. Cornelius*, 113 A.D.2d 666 (1st Dept. 1986) (encl. 2G-K). The officer’s fear for his safety prompting a frisk cannot be based on a general inclination; it must be articulable and specific. *People v. Barreto*, 161 A.D.2d 305 (1st Dept. 1990) (encl. 2L-M).

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it is recommended that **Allegations A, B and C** be closed as **substantiated**.

Allegation D—Force: Det. Victor Robalino used physical force against § 87(2)(b)

Allegation E—Force: PO James O’Brien used physical force against § 87(2)(b)

Allegation F—Force: Sgt. Angel Gomez used physical force against § 87(2)(b)

Allegation G—Force: An officer struck § 87(2)(b) with handcuffs.

It is undisputed that § 87(2)(b) fled when Det. Robalino attempted to apprehend him. § 87(2)(g)

§ 87(2)(b) alleged that when he was apprehended in the backyard, Det. Robalino and PO O’Brien each punched him in the top of the head multiple times.

§ 87(2)(a) PHL § 18(6)

Det. Robalino testified that when he approached § 87(2)(b) § 87(2)(b) pushed him, and a struggle ensued. Det. Robalino and § 87(2)(b) wrestled. § 87(2)(b) kicked him and punched him several times in his midsection. Det. Robalino also conversely punched § 87(2)(b) several times in his midsection while they wrestled, before § 87(2)(b) fled. Det. Robalino denied punching § 87(2)(b) in the head at any point during the incident, or seeing any officer do so. Det. Robalino stated that he did not interact with § 87(2)(b) in the backyard, and he next struggled with § 87(2)(b) with PO O’Brien and Sgt. Gomez on the street, when he tried to cuff § 87(2)(b) but his cuffs had locked upon impact with the ground, rendering them unusable. Det. Robalino denied that he or any other officer struck § 87(2)(b) with a pair of handcuffs (encl. 9A-H).

PO O’Brien saw § 87(2)(b) running and heard Det. Robalino’s resulting shouts, and chased after § 87(2)(b) § 87(2)(b) jumped two fences, and arrived in an enclosed backyard. When PO O’Brien caught up with § 87(2)(b) he tackled him to the ground. § 87(2)(b) continued to resist, and PO O’Brien tried to hold him to the ground as PO O’Brien did not have handcuffs on hand at that time. § 87(2)(b) briefly stopped resisting as PO O’Brien was able to escort him through the house in whose backyard PO O’Brien had apprehended him, but once they were on the street, § 87(2)(b) began to fight with PO O’Brien again, and Det. Robalino and Sgt. Gomez joined the struggle. PO O’Brien denied punching § 87(2)(b) in the head, or anywhere else on his body. PO O’Brien denied that any officer struck § 87(2)(b) with a pair of handcuffs (encl. 10S-X).

It is undisputed that when § 87(2)(b) struggled with PO O’Brien on the street, Sgt. Gomez punched § 87(2)(b) once in the top of the head, causing him to fall to the ground. § 87(2)(b) continued to resist once he was on the ground, but the officers were ultimately able to secure him in leg shackles. Sgt. Gomez testified that after witnessing § 87(2)(b) run away from the officers

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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Reviewer: _____
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